



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

APR 10 2003

DOT-E 12063
(THIRD REVISION)

EXPIRATION DATE: February 28, 2005

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: The Hydrocarbon Flow Specialist, Inc.
Morgan City, LA
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of the materials listed in paragraph 6 in certain non-DOT specification steel portable tanks equipped with an external bottom discharge valve. This exemption provides no relief from any of the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.243(c) in that a non-DOT specification tank is not authorized, except as specified herein.
5. BASIS: This exemption is based on the application of The Hydrocarbon Flow Specialist, Inc. dated March 21, 2003 submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Corrosive liquid, toxic, n.o.s.	8	UN2922	II
Formic Acid	8	UN1779	II
Hydrochloric acid	8	UN1789	II
Hydrofluoric acid, with not more than 60% strength	8	UN1790	II

7. SAFETY CONTROL MEASURES:a. PACKAGING -

(1) Packaging prescribed is a non-DOT specification steel portable tank which is designed, constructed and certified in conformance with the ASME Code, including the ASME Code "U" stamp. The tank design conforms with the requirements of a DOT Specification IM 101 steel portable tank except that the tank has a bottom outlet fitted with three serially-mounted closures consisting of an external discharge valve attached to the bottom flange of the tank, a butterfly valve, and a cam-lock cap at the end of the discharge line. The tank is mounted in an ISO frame. Each tank conforms to drawing numbers BA1004ST and BA1006ST dated 1/26/98, and to photographs and specifications contained in the exemption application on file with Office of Hazardous Materials Exemptions and Approvals. The tank design criteria are as follows:

Material of construction -	SA 516 Grade 70
Wall thickness -	0.375 inches
Design pressure -	58 psig
Length -	5'-0" (maximum)
Diameter -	5'-6" (nominal)
Capacity -	1050 gallons
Rotational molded liner -	1/4" Polyethylene
Pressure relief valve -	One 3" on top center
Pressure relief capacity -	8879 SCFM

b. TESTING - The grantee listed in paragraph 1 of this exemption is responsible for ensuring the following:

(1) Each tank is tested, retested and reinspected in accordance with requirements for DOT Specification IM 101 steel portable tanks contained in §§ 178.270, 178.271 and 173.32b, including approval by a Designated Approval Agency; and

(2) The polyethylene lining for each tank is tested at least once a year using equipment and procedures prescribed by the lining manufacturer or installer. Degraded or defective areas of the liner must be removed and the portable tank shell below the defect must be inspected. If the minimum thickness of the tank shell is below 0.375 inches, the portable tank must be removed from service.

c. OPERATIONAL CONTROLS - The external valve attached to the bottom flange of the tank must be spring-loaded and air-operated. Both external valves must be closed and the end of the bottom discharge line must be capped during transportation.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption may use the packaging authorized by this exemption for the transportation of the hazardous materials specified in paragraph 6 only when:

(1) Each person maintains a current copy of this exemption at each facility where the package is offered or reoffered for transportation;

(2) Each portable tank is within the prescribed periodic requalification period prior to being filled and offered for transportation; and

(3) Each person complies with the terms of this exemption and all applicable requirements of the HMR.

b. MARKING: -

(1) Each tank must be plainly and durably marked on two sides near the middle in letters and numbers at least two inches high, on a contrasting background "DOT-E 12063".

(2) Each portable tank authorized by this exemption may not be identified or otherwise be represented as a DOT Specification IM 101 portable tank.

c. Use of this exemption is limited to a portable tank used for transportation in support of offshore oil and gas exploration and production in the Gulf of Mexico within the jurisdiction of the United States of America.

d. Transportation in international commerce is not authorized.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

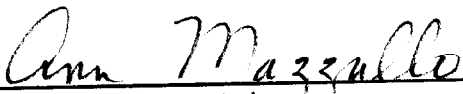
Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable.

(Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



APR 10 2003

(DATE)

for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: PTO/sln